



**DEFENSE LOGISTICS AGENCY
ENERGY
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March 31, 2025

J&A Tracking Number: 25-0013

Justification for Other than Full and Open Competition

1. Summary/Introduction:

The Defense Logistics Agency (DLA) Energy, a component of the DLA, is the contracting activity. This action is for the purchase of a subscription renewal of Stratas Advisors' Global Biofuels Assessment (GBA), Global Refining & Products, and Global Fuel Specifications (GFS) services. This renewal covers a 12-month period from 04/01/2025 through 03/31/2026. Stratas Advisors LLC is the sole producer of this proprietary analysis and report data, therefore it is the sole responsible source for these services. Pursuant to 10 U.S.C. 2304(c)(1), no other publication is able to fulfill this data requirement.

2. Nature and/or description of the action being approved (FAR 6.303-2(b)(2)):

DLA Energy is approving a contract for a subscription to Stratas Advisors' GBA, Global Refining & Products, and GFS publications. These services provide a variety of reports about the global biofuels market, refining capabilities, transportation fuel quality analysis, and fuel specification information for various fuel markets. The subscription serves to provide DLA Energy with the foresight needed to stay abreast of future fuel quality trends and developments around the world that may impact DLA Energy procurements. This action will use FY25 funding.

3. Description of supplies or services required to meet the agency's need (including estimated value) (FAR 6.303-2(b)(3)):

Subscription to Stratas Advisors GBA, Global Refining & Products, and GFS publications allow DLA Energy to validate and research technical requirements for fuels used in conjunction with DLA Energy's Direct Delivery fuels program in order to obtain technically acceptable products for DLA Energy customers. The GBA subscription helps forecast the impact of future regulations through its analysis of current rules and regulations that affect biofuels policies, markets and technology. DLA Energy uses the GBA to gain insight in support of procurements and customer requirements for alternative fuels. The GFS publication assists DLA Energy to better understand the global fuel market by providing quality information and concise analysis for more than 150 countries on transportation fuel quality, vehicle emissions and efficiency legislation, and fuel regulations and specifications. DLA Energy also receives the Global Refining and Products analytics tools. This provides DLA Energy the ability to look at historical and forecast data regarding crude oil and refined products along with supply and demand analysis at the regional and country level (over 100 countries). Furthermore, the analytics tool allows DLA Energy to look at the refinery capacity data for all refining units and investment data. The service also forecasts product supply demand for over 100 countries using the latest market data, and the data can be customized and downloaded as needed. In addition, Stratas Advisors employs experts relative to the global regions who work together with DLA Energy to answer inquiries regarding fuel quality, the state of specific fuel industries, and global fuel trends. The estimated dollar value for the yearly subscription is [REDACTED]

4. Identification of the statutory authority permitting other than full and open competition (FAR 6.303-2(b)(4)):

The statutory authority permitting other than full and open competition is FAR 6.302-1(a)(2), under the authority of 10 U.S.C. § 3204(a)(1) and 41 U.S.C. § 3304(a)(1). "When the . . . services required by the

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(SPE604-25-Q-0411 -Stratas Advisors LLC)

executive agency are available from only one responsible source and no other type of [...] services will satisfy the needs of the executive agency”, or, for DoD . . . from only one or only from a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for.” FAR 6.302-1(a)(2).

5. Demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited (FAR 6.303-2(b)(5)):

Stratas Advisors is one of the world’s largest global energy industry publishers with a vast array of analyses performed on a broad spectrum of fuel markets. Stratas Advisor’s GBA, Global Refining & Products, and GFS publications provide a robust and comprehensive analysis of fundamental market data for conventional and advanced biofuels, and a wide range of fuels to include: gasoline, diesel, ethanol blends, biodiesel blends, ethanol, biodiesel, butanol, CNG, LNG, LPG, DME, methanol, methanol blends, marine, jet, kerosene, fuel oil, and additives.

6. Description of the efforts made to ensure that offers are/were solicited from as many potential sources as is/was practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies (FAR 6.303-2(b)(6)):

On February 24, 2025, DLA Energy-FEA posted an intent-to-sole source notice on SAM.gov (SPE604-25-Q-0411); the notice did not yield additional interest from potential vendors, resulting in no additional competition to meet this requirement. Therefore, Stratas Advisors is the only source available to meet DLA Energy’s needs at this time.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable (FAR 6.303-2(b)(7)):

The contracting officer finds that the proposed price is fair and reasonable using the techniques in FAR 15.404-1. Pursuant to FAR 15.404-1(b)(2)(ii), the contracting officer may make a “[c]omparison of proposed prices to historical prices paid, whether by the Government or other than the Government, for the same or similar items. The contracting officer may also, pursuant to FAR 15.404-1(b)(2)(iv), make a “Comparison with competitive published price lists, published market prices of commodities, similar indexes, and discount or rebate arrangements.”

Last year, DLA Energy paid [REDACTED] for the same items, compared to the proposed price of [REDACTED]. The price increase reflects a [REDACTED] increase from prior year services. Additionally, Stratas Advisors provided DLA Energy with a published price listing and information on the special pricing offered to DLA Energy. The commercial pricing for the same subscription package costs [REDACTED]. The price DLA Energy has been quoted is [REDACTED] less than the commercial pricing for the same subscription. Therefore, the contracting officer determines that the price offered by Stratas Advisors, LLC is fair and reasonable when compared to historical prices paid by DLA Energy, and the commercially published price listing in conjunction to the discount offered to DLA Energy.

8. Description of the market research conducted and the results or a statement of the reason market research was not conducted (FAR 6.303-2(b)(8)):

The customer conducted market research and determined Stratas Advisors was the only source that provides a comprehensive analysis on fuel quality and regulations, covering a broad range of fuel markets in one subscription through a web interface. Market research also identified other sources that provide quality specifications, fuel quality analysis, and forecasts on the impact of fuel regulations, however, it would require multiple subscriptions at a much higher cost to the government.

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An intent-to-sole source notice was posted on SAM.gov on February 24, 2025, however, there was no expectations that the notice would yield additional sources. Therefore, it has been determined that Stratas Advisors is the only source available to meet DLA Energy's needs at this time.

9. Any other facts supporting the use of other than full and open competition, such as (FAR 6.303-2(b)(9)):

(i) Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.

The information provided by Stratas Advisors is proprietary. Stratas Advisors is the only source that provides the GBA, Global Refining & Products, and GFS publications. Therefore, we are unable to develop a specific purchase description suitable for full and open competition that would satisfy the Government's requirements.

(ii) When 6.302-1 is cited for follow-on acquisitions as described in 6.302-1(a)(2)(ii), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.

Not applicable.

(iii) When 6.302-2 is cited, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

Not applicable.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition (FAR 6.303-2(b)(10)):

No sources replied to the Intent-to-Sole Source Notice posted to SAM.gov.

11. Actions that may be taken to remove or overcome barriers to competition before any subsequent acquisition for the supplies or services are required (FAR 6.303-2(b)(11)):

There are no known actions that will allow DLA Energy to overcome the competition barriers for this requirement.

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I hereby certify that the data, which forms the basis for this justification, is accurate and complete to the best of my knowledge and belief.



I hereby certify that the data, which forms the basis for this justification, is accurate and complete and that the purchase request covers only the minimum requirements to satisfy the needs of the Government.



Approved:

